

25STCV19354 25STCV19354

County: los-angeles

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Case Number: 25STCV19354 Hearing Date: September 22, 2026 Dept: 307

15 TENTATIVE RULING 9:15 a.m., Tuesday, September 22, 2026

NGA VO,

et al. v. FORD MOTOR COMPANY, et al. [25STCV19354]

DEFENDANT

HUNTINGTON BEACH FORD'S MOTION FOR SUMMARY JUDGMENT AS TO THE SECOND AMENDED COMPLAINT

TIMELINE:

motor vehicle Lemon Law action

1/8/2017: Plaintiffs Nga Vo and Alexander Lam

("Plaintiffs") agree to lease a 2017 Ford 5-150 (the "Vehicle") from Defendant Huntington Beach Ford ("HBF"). (SAC, ¶ 7.) With the lease, Plaintiffs receive a written warranty from Defendant Ford Motor Company ("Ford"), the manufacturer of the vehicle. (Id. ¶¶ 7-8, Exh. A.)

1/6/2020: Plaintiffs ultimately purchase the Vehicle from HBF. (Def. Exh. 1.)

1/24/2022: Plaintiffs present their Vehicle to HBF for general maintenance and a Vehicle Control Unit ("VCU") inspection. (Def. Decl., ¶ 5, Exh. 4.)

7/23/2022: Plaintiffs present their Vehicle to HBF to replace lug nuts. (Def. Decl., ¶ 5, Exh. 5.)

12/16/2022: Plaintiffs present their Vehicle to HBF to complete asymptomatic Recalls 18N03 and 22S11. (Def. Decl., ¶ 5, Exhs. 3, 6.)

9/30/2023: Plaintiffs present their Vehicle to HBF for routine maintenance. (Def. Decl., ¶ 5, Exh. 7.)

6/1/2024: Plaintiffs present their Vehicle to HBF for routine maintenance and a VCU inspection. (Def. Decl., ¶ 5, Exhs. 3, 8.)

12/31/2024: Plaintiffs present their Vehicle to HBF for routine maintenance. (Def. Decl., ¶ 5, Exhs. 3, 9.)

6/30/2025: Plaintiffs file the Complaint. The operative Second Amended Complaint ("SAC"), filed 2/10/2026, alleges causes of action for:

1.
Violation
of Civ. Code § 1793.2, subd. (d) *et al.*

2.
Violation
of Civ. Code § 1793.2, subd. (b) *et al.*

3.
Violation
of Civ. Code § 1793.2, subd. (a)(3) *et al.*

4.
Breach
of the Implied Warranty of Merchantability

5.
Negligent
Repair

6.
Fraudulent

5/4/2026: The Court sustains without leave to amend the causes of action against Ford in the SAC. Thus, the sole remaining cause of action in the SAC is the fifth cause of action for negligent repair claim against HBF.

6/25/2026: HBF files this Motion for Summary Judgment. As of 9/21/2026, no opposition has been received.

TENTATIVE

RULING: DEFENDANT HUNTINGTON BEACH FORD'S MOTION FOR SUMMARY JUDGMENT is GRANTED.

MOTION FOR SUMMARY JUDGMENT

HBF

moves for summary judgment on the sole remaining cause of action for negligent repair in the SAC on the grounds that the claim is barred by the economic loss rule and because Plaintiff cannot present evidence to raise a triable issue of material fact on that cause of action. Plaintiffs have not opposed the motion.

The

Court finds that no triable issues of material fact exist with respect to Plaintiffs' negligent repair claim against HBF. "The elements of a cause of action for negligence are duty, breach, causation, and damages." (Woolard v. Regent Real Estate Services, Inc. (2024) 107 Cal.App.5th 783, 791.)

Here, Plaintiffs'

negligent repair claim in the SAC is entirely conclusory. Plaintiffs vaguely allege that they delivered the Vehicle to HBF for "substantial repair on at least one occasion." (SAC, ¶ 99.) Plaintiffs allege that HBF breached its duty of care to Plaintiffs by "failing to properly store, prepare and repair" the Vehicle in accordance with industry standards. (Id. ¶ 101.) Plaintiffs also generally allege that HBF's negligence caused Plaintiffs to suffer unspecified damages. (Id. ¶ 102.) Plaintiffs' vague and conclusory allegations, which are devoid of any meaningful factual details identifying the negligent conduct by HBF or the harm suffered by Plaintiffs', are inadequate to state a claim for negligent repair on the pleadings alone.

Even

further, HBF argues that Plaintiffs' negligent repair claim is barred by the economic loss rule. "In general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (Sheen v. Wells Fargo Bank, N.A., 12 Cal.5th 905, 922 (Sheen); Rattagan v. Uber Technologies, Inc., 17 Cal.5th 1, 38 [under the economic loss rule, there is generally no recovery in tort for pure economic losses arising from a contractual relationship].)

In this

case, HBF submits evidence that Plaintiffs presented the Vehicle to HBF for repairs and/or maintenance on at least six occasions between January 2022 and December 2024. (Def. Decl., ¶ 5, Exhs. 4-9.) It is undisputed that these repair services were performed by HBF pursuant to Plaintiffs' Ford maintenance plan (a service contract) and/or Ford's written warranty. (FAC, ¶¶ 7-8, 31, Exh. A; Def. Decl., ¶¶ 5-6, Exhs. 4-9.) Because Plaintiffs are seeking to recover in tort for alleged harms arising from their contractual relationship with HBF, the economic loss is squarely applicable to Plaintiffs' claim here.

Additionally,

Plaintiffs' document production, which consists of the Retail Installment Contract, the Vehicle's DMV registration card, and several repair orders, are devoid of any evidentiary support for the conclusion that Plaintiffs suffered any personal injury or physical damage to property other than the Vehicle itself. (Sloas Decl., ¶ 7, Exh. 3.) Under the "component exception" to the economic loss rule, tort recovery is not barred where economic losses are "accompanied by some form of personal injury or damage to property other than the defective product itself." (KB Home v. Superior Court, 2003) 112 Cal.App.4th 1076, 1079; Jimenez v. Superior Court, 2002) 29 Cal.4th 473, 483-84.) Here, however, given Plaintiffs' failure to oppose this motion, they have not identified or produced any documents confirming that they suffered harm beyond "purely economic losses." (Sheen, supra, 12 Cal.5th at p. 922.)

As

Plaintiffs fail to raise any triable factual dispute regarding: (1) the

existence of a duty owed by HBF that is independent from the warranty and/or service contract, (2) whether Plaintiffs suffered any non-economic damages due to HBF's alleged negligence, or (3) whether some exception to the economic loss rule applies here, the Court finds that the undisputed facts and the allegations on the face of the SAC together demonstrate that Plaintiffs' negligent repair claim is barred by the economic loss rule. Accordingly, HBF is entitled to summary judgment on Plaintiffs' sole remaining negligent repair claim as a matter of law.

Therefore,
HBF's motion for summary judgment is GRANTED.¿

Defendant Huntington Beach Ford to serve
notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court
website on 9/21/26 at 2 p.m.